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Case Number: 21CHCV00189 Hearing Date: September 9, 2026 Dept: F43

Dept. F43

Hearing Date: 09-09-26

Case # 21CHCV00189, Adams v. GG&C
1, LLC, et al.

Trial Date: N/A

MOTION TO ISSUE A PRELIMINARY
INJUNCTION AND / OR TEMPORARY RESTRAINING ORDER

MOVING PARTY: Plaintiff Duda Adams

RESPONDING PARTIES: Defendants David L. Adams and GG&C 1, LLC

RELIEF REQUESTED

Order issuing (1) a temporary restraining order,
enjoining and restraining Star City Motors of San Ramon, from transferring,
selling, encumbering, otherwise moving, or making unavailable the Mercedes-Benz
SL 550 Roadster, VIN: WDDJK7DA3DF01539, that is the subject of the order
entered on December 29, 2025; and (2) a preliminary injunction requiring Star
City Motors to turn over possession of the Mercedes vehicle and its keys to
plaintiff Duda Adams, or her Nominee.

RULING: Motion for preliminary injunction is granted.

SUMMARY OF ACTION

Plaintiff Duda Adams (Plaintiff) filed this wrongful eviction case against her stepson David L. Adams and his business GG&C 1, LLC on March 10, 2021.

Plaintiff claims that after her husband, Blancy Unawich, died, defendant Adams locked her out of the family home that she paid for, and took all her personal property, including her share of a bank account held by her late husband. Plaintiff's Third Amended

Complaint states 12 causes of action:

(1) forcible detainer; (2) wrongful eviction; (3) & (4) intentional and negligent infliction of emotional distress; (5) restitution of the property; (6) conversion of her personal property; (7) loss of prospective economic advantage; and (8)-(12) quiet title, declaratory relief, constructive trust, resulting trust, and equitable mortgage. Defendants' joint answer contends that pursuant to the parties' "Gypsy" customs and his father's wishes, all the property went to defendant Adams for the benefit of his sons.

A bench trial (Hon. Gary Micon) was held from August 11 through 13, 2025. The court issued a tentative Statement of Decision on November 10, 2025, ruling for Plaintiff on the third, fourth, sixth, ninth, tenth, and eleventh causes of action and for Defendants on the remaining causes of action. Defendants subsequently filed objections. The court issued its original final Statement of Decision on December 16, 2025. (12/16/25 Court Order: Statement of Decision.)

On December 29, 2025, the court issued its interim judgment, ruling in Plaintiff's favor on the third, fourth, sixth, ninth, tenth, and eleventh causes of action and for Defendants on the remaining causes of action. The court also awarded Plaintiff to the Bentley and Mercedes-Benz automobiles which were located on the property on Devonshire Street in Northridge.

Defendants subsequently moved for a new trial, which Judge Micon set aside due to outstanding issues concerning damages as to Plaintiff's personal property.

On May 8, 2026, the court (Hon. Michael O’Gara) issued an order, requiring the DMV to effectuate transfer of title for the Mercedes vehicle to Plaintiff and authorizing plaintiff’s counsel, Gary Kurtz, to execute any and all documents on Plaintiff’s behalf to facilitate the transfer. (5/08/2026 Minute Order at p. 1.)

On August 5, 2026, Plaintiff filed an ex parte application seeking (1) a Temporary Restraining Order Enjoining and Restraining Star City Motors of San Ramon, From Transferring Selling, Encumbering, Otherwise Moving, Making Unavailable or the Mercedes-Benz SL 550 Roadster, VIN: WDDJK7DA3DF01539, That Is the Subject of the Judgment in This Case; and (2) an Order To Show Cause Why the Court Should Not Issue and Order Requiring Star City Motors To Turn Over the Mercedes to Duda Adams, or her Nominee or, in the Alternative To Continue the Injunction Until Further Court Orders. The court (Hon. Michael O’Gara) granted the application on August 7, 2026, and Plaintiff served Star City Motors with the order that same day by email to “StarCityMotors415@yahoo.com.”

On September 2, 2026, Star City Motors filed a brief opposing the imposition of the temporary restraining order and a preliminary injunction. Plaintiff replied on September 3, 2026.

SUMMARY OF ARGUMENTS

Star City Motors contends the document ordering title transfer is an interim order that reserves judgment on Plaintiff’s property. Plaintiff cannot establish likely success by treating the interim ruling as a final adjudication that is binding on Star City Motors, and Plaintiff cannot obtain final possessory relief against a nonparty without first pleading and adjudicating a claim against it. Plaintiff’s evidentiary showing does not establish legal title or competent evidence of forgery. The balance of harms favors preserving Star City Motors’ possession of the Mercedes vehicle while claims are being properly adjudicated, and therefore, preserves the existing condition while the rights of Plaintiff, Star City, and Strass are properly pleaded and adjudicated. Any continued injunction should be conditioned upon an undertaking.

In response, Plaintiff contends Star City's briefing is based on inadmissible and irrelevant evidence. The purported transfer from Blancy Uwnawich to Ginger Adams was fraudulent, is therefore invalid, and any purported title thereafter is invalid and ineffective.

Any persons claiming ownership or retaining possession on the basis of invalid title are liable for conversion.

The December 2025 Judgment is final for the purposes of collecting concerning fully adjudicated issues such as ownership and title transfer for the Mercedes vehicle. The judgment was confirmed by the May 8, 2026, order of this court. Plaintiff has spent six months locating the Mercedes vehicle. Plaintiff is likely to succeed on the merits of determining who owns title in the vehicle and will suffer harm, including the cost of further litigation without the preliminary injunction.

EVIDENTIARY OBJECTIONS

Plaintiff objects to the Declaration of Chris Blick presented by Star City Motors:

Overruled: 2, 3, 4, 5.

Sustained: 1, 6.

ANALYSIS

A. Preliminary Injunctions

The purpose of a preliminary injunction is to preserve the status and prevent irreparable harm pending an adjudication on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554-555.)

"A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) the 'interim harm' to that party if an injunction is denied is greater than 'the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.'"

(*Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183, citations omitted.)

“Although preliminary injunctions are generally designed to ‘preserve the status quo pending a determination on the merits of the action,’ they are not so limited. A court also has the power to issue a preliminary injunction that ‘mandates an affirmative act that changes the status quo,’ but should do so only in those ‘extreme cases where the right thereto is clearly established.’” (Id. at pp. 1183-1184, citations omitted.)

The court must consider two factors when deciding whether to issue a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial; and (2) the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 69-70.)

The moving party must present evidence of both elements. (Loder v. City of Glendale (1989) 216 Cal.App.3d 777, 783.) The evidence may consist of “a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” (Code Civ. Proc., § 527, subd. (a).) “[T]he trial court is the judge of the credibility of the affidavits filed in support of the application for preliminary injunction and it is that court’s province to resolve conflicts.” (Monogram Industries, Inc. v. Sar Industries, Inc. (1976) 64 Cal.App.3d 692, 704.)

A court may grant an injunction:

(1) When

it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

(2) When

it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable

injury, to a party to the action.

(3) When

it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

(4) When

pecuniary compensation would not afford adequate relief.

(5) Where

it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

(6) Where

the restraint is necessary to prevent a multiplicity of judicial proceedings.

(7) Where

the obligation arises from a trust.

(Code Civ. Proc., § 526, subd. (a)(1)-(7).)

Plaintiff seeks to maintain the temporary restraining order to prevent Star City Motors of San Ramon from transferring the Mercedes and encumbering the vehicle as well as a “mandatory” injunction which would require Star City Motors to transfer possession of the Mercedes vehicle and the keys to Plaintiff or her nominee.

Courts have power to issue preliminary injunctions

mandating affirmative acts that change the status quo in extreme cases where the right is clearly established. (Integrated

Dynamic Solutins, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1184 [defining “status quo” as “the last actual peaceable, uncontested status which preceded the pending controversy”];

see also Santa Clarita Valley Water Dist. v. Eisenberg (2025) 117 Cal.App.5th 714, 728-729.)

Here, the facts involving Judge Micon’s December 2025

order and the evidence of the forged Bill of Sale establish this is an extreme

case.

1. The

facts leading to Star City Motors' current possession of the Mercedes-Benz vehicle.

In December 29, 2025, Judge Micon issued an order that entered

judgment for Plaintiff on the issue of the sixth cause of action for conversion. (12/29/2025 Minute Order, ¶¶ 1, 5.) The court then ordered Defendants to transfer

to Plaintiff title to the Mercedes-Benz vehicle (2014 SL550, VIN

WDDJK7DA3DF015398). (Id. at p.

2.) During trial, defendant David Adams

testified the vehicle and its keys were stored at the Devonshire property. The court ordered the transfer of title to

occur no later than January 7, 2026, or upon request of plaintiff, the court

would appoint and elisor. The judgment

was final as to the issue of who owned title in the Mercedes vehicle and no

other issues remain as to the Mercedes-Benz vehicle. Thus, Start City Motors' "no final enforceable" judgment argument fails.

On March 24, 2025, Star City Motors purchased the

Mercedes for \$30,000 from Dena Ginger Adams, defendant David Adams'

sister. (Declaration of Chris Blick ¶ 8.)

On April 10, 2026, Star City Motors sold the Mercedes to

an individual named William Strass who took delivery of the vehicle on April

12, 2026. (Blick Decl. ¶ 9.)

On May 8, 2026, the court (Hon. Michael O'Gara)

issued an order, requiring the DMV to effectuate transfer of title for the

Mercedes vehicle to Plaintiff and authoring plaintiff's counsel, Gary Kurtz, to

execute any and all documents on Plaintiff's behalf to facilitate the transfer. (5/08/2026 Minute Order at p. 1.)

Mr. Kurtz then took the order to the DMV to transfer

title, and the car was registered to Plaintiff.

(Reply Declaration of Gary Kurtz ¶ 3, Exh. 4 [registered to Plaintiff since

June 9, 2026].)

On June 12, 2026, Mr. Strass returned the Mercedes to

Star City Motors on consignment so that Star City could sell it on his

behalf. (Blick Decl. ¶ 10.) Star City presently has possession of the

Mercedes, the physical certificate of title, and the keys, and Mr. Strass has not authorized Star City Motors to surrender the Mercedes to Plaintiff. (Id.)

Star City Motors' principal, Chris Blick, claims he first learned about a competing claim on the Mercedes on August 4, 2026, when a woman called and claimed the Mercedes was stolen from a family member and plaintiff's counsel, Gary Kurtz, called shortly thereafter confirming the vehicle identification number and emailed Mr. Blick about the court's orders. (Blick Decl. ¶ 12.)

In August of 2026, Plaintiff and Mr. Kurtz determined that the vehicle could be registered as non-operational, which would avoid the need for a smog certificate and permit title to be issued in Plaintiff's name. (Reply Kurtz Decl. ¶ 4.) Plaintiff went to the DMV, registered the vehicle as non-operational, showed her driver's license, and paid the remaining fee. Title is to be sent to Mr. Kurtz's office, but he has not received it yet.

On August 10, 2026, Mr. Kurtz filed the declaration of Forensic Document Examiner Beth Chrisman. (Reply Kurtz Decl. ¶ 5; 8/10/2026 Declaration of Beth Chrisman.) Ms. Chrisman was tasked with determining whether the Mercedes vehicle's bill of sale purporting to have transferred ownership of the Mercedes to a "Ginger Adams" was signed by Blancy Uwnawich. (Chrisman Decl., Exh. A [Vehicle Bill of Sale for a Mercedes Benz SL dated June 30, 2020].) Based on her analysis of the signature on the bill of sale and 64 documents known to be signed by Blancy Uwnawich, Ms. Chrisman determined Blancy Uwnawich did not author or sign the bill of sale. The court notes that Mr. Uwnawich died in November of 2020 and that before the bill of sale was drafted, the Mercedes vehicle was in his name.

2. Plaintiff has met her burden of demonstrating a likelihood of success on the merits concerning title in the Mercedes vehicle.

Through the Chrisman Declaration and the Kurtz Reply Declaration, Plaintiff has demonstrated Star City Motors' purchase of the Mercedes vehicle is void.

"[A] forged document is void ab initio and constitutes a nullity; as such it cannot provide the basis for a superior title

as against the original grantor.” (Wutzke v. Bill Reid Painting Service, Inc. (1984) 151 Cal.App.3d 36, 43; WFG Nat'l Title Ins. Co. v. Wells Fargo Bank, N.A. (2020) 51 Cal.App.5th 881, 890-891 [A forged instrument or lien passes no title to a bona fide purchaser nor creates a superior title]; Suburban Motors, Inc. v. State Farm Mut. Auto. Ins. Co. (1990) 218 Cal.App. 3d 1354, 1359-1360 [Section 2403 of the Uniform Commercial Code does not “validate[] a second chain of title to an automobile spuriously created after it has been stolen,” and that a good-faith purchaser for value from a thief does not acquire valid title – the purchaser’s title is void, not merely voidable.])

Here, Plaintiff has demonstrated the bill of sale purporting to transfer title of the Mercedes to Ginger Adams on June 30, 2020, was not executed by Blancy Uwnawich but was forged. Because the bill of sale was forged, the bill of sale is void ab initio and no title passed from Blancy Uwnawich to Ginger Adams, from Ginger Adams to Star City Motors, or from Star City Motors to Mr. Strass. Furthermore, Mr. Kurtz’s Reply Declaration along with the document attached as Exhibit 4 to the Kurtz Ex Parte Application declaration is a copy of DMV records showing Plaintiff’s attempt at registering the Mercedes vehicle and completing a smog certificate. (See Ex Parte Declaration of Gary Kurtz ¶ 7, Exh. 4. But see Suburban Motors, Inc., supra, 218 Cal.App.3d at p. 1362-1364 [DMV documents demonstrate ownership not conclusively titleholder’s claim to outright ownership].) Thus, Mr. Strass’ supposed ownership of the vehicle and Star City Motors’ current possession of the vehicle is therefore without valid title, and the plaintiff retains superior title by virtue of the court’s prior judgment. (See Veh. Code, § 460 [court vesting legal title to the vehicle in Plaintiff].)

Therefore, the prior judgment on its own establishes Plaintiff’s title, evidencing Plaintiff’s success on the merits of her underlying conversion claim in this matter and likelihood of success on the merits of any separate conversion claim against the party who forged the bill of sale.

In opposition, Star City Motors contends the December 29, 2025, order was an interim order with no preclusive effect or authority to dictate the title holder of the Mercedes vehicle.

In general, a judgment disposing of fewer than all causes of action between the parties is interlocutory and not yet final for purposes

of appeal, but the court may still enforce those parts of the judgment which are conclusive. A judgment or order against a specific thing "is conclusive upon the title to the thing[.]" (Code Civ. Proc., § 1908, subd. (a)(1).)

Here, Judge Micon's order entering judgment on the conversion cause of action and on Plaintiff's right to title in the Mercedes-Benz constitutes a conclusive adjudication of ownership of the specific vehicle. Although other issues concerning Plaintiff's personal items may have remained unresolved, this does not disturb the court's order as to the fully adjudicated conversion claim and the Mercedes vehicle.

3. Both

Plaintiff and Star City Motors will experience some harm if the injunction is granted, but Plaintiff will suffer more harm.

In considering the weight of the harm to each party, the court should seek to "minimize the harm which an erroneous interim decision may cause." (IT Corp. v. City of Imperial (1983) 35 Cal.3d 63, 73.) "[T]he granting, denying, dissolving, or refusing to dissolve a preliminary or temporary injunction rests in the sound discretion of the trial court upon a consideration of all the particular circumstances of each individual case. It is further the rule that 'The discretion, however should be exercised in favor of the party most likely to be injured.'" (McCoy v. Matich (1954) 128 Cal.App.2d 50, 52, citations omitted.)

Star City Motors insists an injunction ordering turnover of the vehicle would create a risk that the vehicle could be registered, transferred, altered, or made unavailable before Star City Motors' contractual and possessory interests and Strass' claimed ownership are adjudicated. According to Star City, Plaintiff should file a separate action against Star City Motors to actually adjudicate the ownership claims.

The court finds this is irrelevant because the court has already entered a judgment finding Plaintiff is the superior title holder of the Mercedes vehicle as of December 29, 2025. There is nothing left to adjudicate on that issue, and Star City Motors' purchase from Ginger Adams occurred three months after the court made its findings.

The court does find that Star City Motors will suffer some harm due to turning the vehicle over in violation of its agreement with Mr. Strass and due to Mr. Strass potentially seeking legal action against Star City Motors for selling him a vehicle to which Star City Motors did not own title. On the other hand, Plaintiff will continue to lack possession of property to which she has legal title due to improper conduct by defendant David Adams and his sister Ginger Adams. Although Plaintiff still awaits formal title from the DMV, Plaintiff has filed the appropriate documentation, and this court's final adjudication on the issue supports a finding that Plaintiff is entitled to immediate possession of the Mercedes vehicle. Allowing Star City Motors to return the vehicle to Mr. Strass or to sale the vehicle would lead to yet another void sale in the chain of title, causing Plaintiff further costs in obtaining the vehicle and potentially facing permanent loss of the vehicle if the preliminary injunction is denied.

Thus, the balance of hardships strongly favors Plaintiff.

4.

Undertaking

Star City Motors states that if the court issues the preliminary injunction, Code of Civil Procedure requires section 529 requires an undertaking sufficient to compensate a restrained party if the injunction is later found improper. Plaintiff claims there is no uncertainty about Plaintiff's likelihood of success because it has already been determined that Plaintiff is entitled to possession and title to the Mercedes.

"On granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction. Within five days after the service of the injunction, the person enjoined may object to the undertaking. If the court determines that the applicant's undertaking is insufficient and a sufficient undertaking is not filed within the time required by statute, the order granting the injunction must be

dissolved.” (Code Civ. Proc., § 529, subd. (a).) “The kind of damage that could result from the wrongful issuance of an injunction . . . is that portion of the defendant’s attorney fees that was devoted to demonstrating that the injunction was wrongfully issued.” (Oye v. Fox (2012) 211 Cal.App.4th 1036, 1062.)

Because Star Motor City has provided no support for its undertaking contention or shown its supposed financial position, the court does not impose any bond.

The court finds that Plaintiff has demonstrated a likelihood of success on the merits on owning title to the Mercedes vehicle and that Plaintiff has also shown that her harm in the absence of the injunction outweighs Star City Motors’ harm.

Therefore, Plaintiff’s Motion for Preliminary Injunction is granted.

Star City Motors of San Ramon is ordered to turn possession of the Mercedes vehicle and its keys over to plaintiff Duda Adams within twenty (20) days of the issuing of this order.

No bond is issued.

CONCLUSION and ORDER

Preliminary Injunction is granted.

The court lifts the temporary restraining order to allow Star City Motors of San Ramon to convey possession of the Mercedes-Benz vehicle and its keys to plaintiff Duda Adams within twenty (20) days of the issuing of this order.

Plaintiff Duda Adams to give notice.